the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE ALITO, dissenting.

This case is much simpler than the Court's opinion suggests, and we have no need to consider whether petitioner's term of supervised release was "tolled" when she absconded and evaded supervision.

I

I will start with what is undisputed. In December 2017, petitioner began a 42-month term of supervised release and, during that time, was required not to use illegal drugs or commit any other crimes and was ordered to notify her probation officer if her address changed. In May 2018, she moved without telling her probation officer, and a warrant was issued for her arrest. She remained a fugitive until January 2023, but during the intervening months, she committed three state-law criminal offenses, including a drug crime in January 2022. The sentencing judge, exercising his authority under 18 U. S. C. §§3583(e)(3) and (h), revoked petitioner's term of supervised release, sent her back to prison for 16 months, and required her to serve a new 2-year term of supervised release after her release from confinement.

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In determining the length of petitioner's new term of imprisonment, the judge turned first to the Sentencing Guidelines. Without the January 2022 drug offense, the sentencing range recommended by the Guidelines was 8 to 14 months, but with the drug offense the range jumped to 33 to 36 months. The judge started with the higher range, but he made a large downward "variance" and set her sentence at 16 months, just 2 months longer than the top of the range that would have applied if the drug offense were disregarded.

II

The question before us is whether the sentencing judge's consideration of the drug offense was lawful, and based on

the terms of the Sentencing Reform Act of 1984, it clearly was. Under 18 U. S. C. § 3583(e), the judge was permitted to take into account most of the factors set out in § 3553(a), and several of those factors permitted consideration of the January 2022 drug crime. For example, imprisoning petitioner for 16 months could deter her from committing criminal offenses, including drug crimes, during and after her new 2-year term of supervised release. See § 3553(a)(2)(B). The 16-month term could also deter others from violating supervised release and committing serious crimes. See *ibid.* And by confining petitioner for 16 months, the sentence protected the public from crimes that petitioner, a serial recidivist, might have committed if she were not in prison. See § 3553(a)(2)(C).[1]

Although the Sentencing Reform Act plainly authorized the sentencing judge to consider the January 2022 drug offense, petitioner challenges her sentence based on her interpretation of the Sentencing Guidelines. That argument should be rejected for at least two reasons. First, the Sentencing Commission cannot take away important authority that the Sentencing Reform Act unequivocally gives to district courts. Second, the Sentencing Guidelines, properly read, do not prevent a judge from considering all crimes that a prisoner commits after absconding from supervised release.

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Petitioner's contrary argument rests on what she understands to be the combined operation of several provisions of the Sentencing Guidelines. At the time of her sentencing, § 7B1.1 set out several grades of supervised released violations, ranging from Grade A for the worst transgressions (including drug felonies) to Grade C for the least serious. United States Sentencing Commission, Guidelines Manual

[1] Even petitioner concedes that the "supervisee's conduct *after* the expiration of the term can still be considered by the sentencing court as part of the relevant 18 U. S. C. § 3553(a) analysis when selecting the appropriate revocation sentence." Brief for Petitioner 46 (emphasis in original).

§7B1.1 (Nov. 2023). Section 7B1.4(a) provided recommended ranges of imprisonment for each violation grade.

Petitioner contends that a supervised release violation is one that occurs while a prisoner is on supervised release and that she was no longer on supervised release when she committed the drug crime in January 2022 because her term of supervised release continued to run while she was a fugitive and thus expired in 2021. As a result, she maintains, the drug offense should not have been considered in calculating the sentence recommended by the Guidelines.

I am bemused by the notion that petitioner was on supervised release when she was evading all supervision. (I suppose she was on "unsupervised supervised release.") And it seems strange to regard a crime committed after the expiration of "unsupervised supervised release" as a non-event. By that logic, if petitioner had gone on a murder spree after the expiration of the period of unsupervised supervised release, the sentencing judge would have been required to put that out of his mind.

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As I see it, however, the whole debate about whether petitioner's term of supervised release continued to run or was "tolled" while she was on the lam is pointless. The Guidelines are merely advisory, and this Court has made it clear that a judge is allowed to impose a sentence outside the recommended Guidelines range when that range "fails properly to reflect §3553(a) considerations." *Rita* v. *United States*, 551 U. S. 338, 351 (2007).

That is what the judge did here, and it makes no difference that he started with the 33-to-36-month range and then varied downward to 16 months instead of starting with the lower range of 8 to 14 months and varying upward by 2 months based on the drug crime. Not only was this permitted by the Guidelines, but the judge stated that Rico's sentence was imposed "regardless of the applicable sentencing guideline range." App. to Pet. for Cert. 35a. By taking petitioner's January 2022 drug crime into account in this

way, the judge acted in conformity with the Sentencing Reform Act, the Sentencing Guidelines, and the authority that this Court recognized in *Rita*.[2]

I would therefore affirm.

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[2] Contrary to the Court's argument, see *ante*, at 622, n., I do not contend that we should affirm based on harmless error. Rather, the District Judge made no error at all.